

Tanner 1627

<i>Latin</i>	<i>English</i>
## DVBIVM IV. <i>An Pontifex iure diuino sit caput Ecclesiæ, & Petri successor: & an sit de fide, hunc numero Pontificem esse vere Pontificem, & Ecclesiæ caput; & an aliquando possit ea potestate excidere.</i> Ad S. Thomæ 2. 2. q. 1. a. 5. & 10. De primo quæsito sequentes assertiones statuimus. Assertio I. Etsi quidem aliquo sensu de fide sit, Romanum Pontificem diuino iure Petro succedere, & totius Ecclesiæ caput esse; tamen non ita ex fide certum est, Pontificem Romanum, hoc ipso, quod Romanus Pontifex est, diuino iure Petri successorem esse, in vniuersali illa Ecclesiæ cura; ita vt summa illa auctoritas gubernandi Ecclesiam, directa institutione ac lege diuina Romanæ Cathedræ inseparabiliter annexa sit; licet nec hoc absque temeritate negari possit. Hanc assertionem probant & tuentur Turrecremata lib. 2. de Ecclesia cap. 4. Canus lib. 6. locorum Theolog. cap. 4. 5. 6. Driedo lib. 4. de varijs dogmat. cap. 4. part. 3. Bellarminus lib. 2. de Pontifice cap. 12. & Gregorius de Valentia hic quæstione 1. pun. 7. §. 38. & alij communiter contra Dominicum Sotum lib. 4. sentent. distinct. 24. quæst. 2. art. 5. qui Ecclesiastico solum iure supremam illam	## DOUBT IV. <i>Whether the Pontiff is by divine right the head of the Church and the successor of Peter: and whether it is a matter of faith that this particular Pontiff is truly the Pontiff and head of the Church; and whether he can ever fall from that power.</i> On St. Thomas, Summa Theologiae II-II, q. 1, a. 5 & 10. Concerning the first question, we establish the following assertions. Assertion I. Although in a certain sense it is a matter of faith that the Roman Pontiff succeeds Peter by divine right and is the head of the whole Church; nevertheless, it is not so certain from faith that the Roman Pontiff, by the very fact that he is Roman Pontiff, is the successor of Peter by divine right in that universal care of the Church; such that that supreme authority of governing the Church would be inseparably annexed to the Roman See by direct institution and divine law; although this cannot be denied without rashness. This assertion is proved and defended by Turrecremata in book 2 of <i>De Ecclesia</i> chapter 4, Canus in book 6 of <i>Loci Theologici</i> chapters 4, 5, and 6, Driedo in book 4 of <i>De variis dogmatibus</i> chapter 4, part 3, Bellarmine in book 2 of <i>De Pontifice</i> chapter 12, and Gregory of Valencia here in question 1, point 7, § 38, and others commonly against Domingo de Soto in book 4 of the <i>Sentences</i>, distinction 24, question 2, article 5, who taught that that supreme

<i>Latin</i>	<i>English</i>
auctoritatem Cathedræ Romanæ annexam esse docuit.	authority is annexed to the Roman See by ecclesiastical law alone.
Probatur eadem assertio quoad primam partem. Nam Romanum Pontificem Petro diuino iure successisse, atque ita eodem iure diuino esse totius Ecclesiæ caput, tripliciter intelligi potest. Primo, & vno quodam sensu ita potest intelligi, vt solum ipsa successio, qua aliquis Petro in regimine vniuersalis Ecclesiæ succedere debeat, sit de iure diuino, & ex Christi institutione profecta; hoc ipso nimirum, quod potestas illa à Christo non soli Petro, sed etiam eiusdem successoribus tradita est; idque ipsum adeo officium gubernandi totam Ecclesiam, velut ordinarium, ac perpetuo in Ecclesia duraturum, à Christo institutum fuit. Et hoc sensu absque dubitatione ex fide certum est, Romanum Pontificem diuino iure Petro succedere, vt ex dictis constat. Secundo intelligi hoc potest, de coniunctione potestatis illius cum persona Romani Pontificis, non absolute, & in sensu diuiso, sed in sensu composito, & ex suppositione, quod is videlicet, post mortem Petri consentiente Ecclesia, successor Petri, & totius Ecclesiæ Pastor legitime electus est. Et hoc etiam sensu à nemine Catholico negari potest, Romanum Pontificem, tanquam Petri successorem, iure diuino habere potestatem in vniuersam Ecclesiam; cum apertè sequatur ex priori sensu eiusdem propositionis; nec minus verum sit, & certum, quam quod Ioannes v. g. posito quod sit Sacerdos, diuino iure habeat potestatem consecrandi, vt recte dixit Bannes hic quæst. 1. art. 10. dub. 4. Et propter vtramque causam, absolute dicendum &	The same assertion is proved as to the first part. For that the Roman Pontiff has succeeded Peter by divine right, and thus by the same divine right is the head of the entire Church, can be understood in three ways. First, and in a certain sense, it can be understood thus: that only the succession itself, by which someone ought to succeed Peter in the government of the universal Church, is of divine right and proceeded from the institution of Christ; namely by this very fact, that that power was handed down by Christ not to Peter alone, but also to his successors; and that this very office of governing the whole Church, as ordinary and destined to endure perpetually in the Church, was instituted by Christ. And in this sense it is certain beyond doubt from the faith that the Roman Pontiff succeeds Peter by divine right, as is evident from what has been said. Secondly, this can be understood concerning the conjunction of that power with the person of the Roman Pontiff, not absolutely and in a divided sense, but in a composite sense and ex hypothesi—namely, that he, after the death of Peter, with the consent of the Church, has been legitimately elected as the successor of Peter and Pastor of the entire Church. And in this sense also, it cannot be denied by any Catholic that the Roman Pontiff, as the successor of Peter, possesses by divine right the power over the universal Church; since this clearly follows from the prior sense of the same proposition; nor is it any less true and certain than the fact that John, for example, supposing that he is a priest, possesses by divine right the power of consecrating, as Báñez correctly stated here in question 1, article 10, doubt 4. And for both reasons, it must

<i>Latin</i>	<i>English</i>
fatendum est, Episcopum Romanum iure diuino esse Petri Successorem, & totius Ecclesiæ caput, vt notauit Bellarminus cit. cap. 12. Ex quibus proinde satis patet prima pars assertionis.	be stated and confessed absolutely that the Bishop of Rome is by divine right the Successor of Peter and the head of the entire Church, as Bellarmine noted in the aforementioned chapter 12. From these considerations, therefore, the first part of the assertion is sufficiently evident.
Tertio vero intelligi id potest, de coniunctione potestatis illius cum persona Romani Pontificis absolute: & ad hunc sensum spectat secunda pars assertionis. Quæ quidem ex eo probatur. Quia omnes illæ Sanctorum Patrum sententiæ, quibus asserunt, Romanæ sedis Episcopum, ex Christi institutione, Petro successisse, intelligi absolute possent, iuxta sensum, primæ partis assertionis; nimirum vel de ipsa institutione Potestatis illius abstractè; siue etiam ex hypothesi quadam, posito nimirum, quod Romanus Pontifex est is, quem Ecclesia ipsa successorem Petri constituit, siue id suo arbitratu, siue ex peculiari Christi institutione faciat: ex quo intelligi posset, adhuc non satis esse determinatum, an reuera Romanus Pontifex, hoc ipso, quod talis est, iure diuino, an solum iure Ecclesiastico, Petro Apostolo succedat.	Thirdly, however, this can be understood concerning the conjunction of that power with the person of the Roman Pontiff absolutely: and the second part of the assertion pertains to this sense. This indeed is proved from the following. Because all those opinions of the Holy Fathers, by which they assert that the Bishop of the Roman See has succeeded Peter by the institution of Christ, could be understood absolutely, according to the sense of the first part of the assertion; namely, either concerning the very institution of that Power abstractly; or even from a certain hypothesis, that is to say, given that the Roman Pontiff is he whom the Church herself constitutes as the successor of Peter, whether she does this by her own judgment, or by a particular institution of Christ: from which it could be understood that it is still not sufficiently determined whether in reality the Roman Pontiff, by the very fact that he is such, succeeds the Apostle Peter by divine right, or only by ecclesiastical right.
Tertia pars assertionis ex eo probatur; quia SS. Patres simpliciter & absolute ita loquuntur, Romanum Pontificem, hoc ipso scilicet, quod Romanus Pontifex est, diuino iure & institutione Petri successorem esse; atque ad hanc rem ipsam probandam scripturæ testimonia accommodant: qui proinde rectius & conuenientius ita absolute intelliguntur. In quo genere speciatim notandum	The third part of the assertion is proven from this: that the Holy Fathers speak simply and absolutely in this manner, that the Roman Pontiff, by this very fact, namely, that he is the Roman Pontiff, is the successor of Peter by divine right and institution; and they apply the testimonies of Scripture to prove this very matter: who are therefore more correctly and appropriately understood in this absolute sense. In this category, that statement of the Lateran Council in the chapter

<i>Latin</i>	<i>English</i>
illud Concilij Lateran. in cap. <i>Damnatus</i>, de Sum. Trinit. & fide Cathol. Vbi Ecclesia Romana dicitur, <i>Deo ipso disponente, mater & magistra omnium Ecclesiarum</i>. Accedit, quod Marcellus Papa epist. ad Antioch. scribit, Petrum, iubente Domino, Romam Sedem suam ex Antiochia transtulisse. Quod ipsum etiam confirmat illa historia, qua Petrus Roma abiturus, speciali Christi admonitione, Romæ vitam finijt, vt Ambrosius orat. contra Auxentium, quæ extat lib. 5. Epistolarum, post Epist 32. & Egesippus lib. 3. excidij Hierosolymit. cap. 2. testantur. Quo ipso indicatur, voluisse Christum, nullum alium Petri post mortem esse successorem, quam Romanum Pontificem. Quare etiam Gregorius de Valentia cit. §. 38. ait, contrariam Soti opinionem, in re tam graui, videri nimis <i>singularem</i>, nec vero <i>satis tutam</i>. Etenim non parum interest, vtrum humano, an diuino iure Romanus Pontifex sit Petri Successor, vt recte notauit Gregorius de Valentia loc. citat. Nam si humano duntaxat iure Petro succedit, fieri posset eodem iure humano & Ecclesiastico, vt Petri Successor non esset Romanus Pontifex, sed vel alterius, vel nullius certæ Sedis Episcopus. Si autem diuino iure institutum est, vt ipse Romanus Pontifex Petro succedat, tum id institutum penitus fixum, & ab Ecclesia immutabile est. Deinde si potestas illa à Romana sede penitus immutabilis est, tunc Romana etiam particularis Ecclesia absolute erit	<i>Damnatus</i>, concerning the Most Holy Trinity and the Catholic Faith, is especially to be noted. There the Roman Church is said to be, <i>by God Himself disposing it, the mother and teacher of all Churches</i>. There is added to this what Pope Marcellus writes in his epistle to the Antiochenes, that Peter, at the Lord's command, transferred his See from Antioch to Rome. This same fact is also confirmed by that history according to which Peter, about to depart from Rome, by a special admonition of Christ, ended his life at Rome, as Ambrose in his oration against Auxentius, which is extant in book 5 of the Epistles, after Epistle 32, and Hegesippus in book 3 of the destruction of Jerusalem, chapter 2, testify. By this very fact it is indicated that Christ willed that no one other than the Roman Pontiff should be the successor of Peter after his death. Wherefore also Gregory de Valentia in the cited §. 38 says that the contrary opinion of Soto, in so grave a matter, seems too <i>singular</i>, and not truly <i>sufficiently safe</i>. For indeed it matters not a little whether the Roman Pontiff is the Successor of Peter by human or by divine law, as Gregory of Valencia rightly noted in the place cited. For if he succeeds Peter by human law alone, it could come about by that same human and ecclesiastical law that the Successor of Peter would not be the Roman Pontiff, but rather the Bishop of another see, or of no certain see. If, however, it has been instituted by divine law that the Roman Pontiff himself succeeds Peter, then that institution is entirely fixed and immutable by the Church. Furthermore, if that power is entirely immutable from the Roman see, then the particular Church of Rome will also be absolutely indefectible; otherwise not, as will be said below.

Latin**English**

indefectibilis; alias non item, vt
inferius dicetur.

ASSERTIO II. Certum
nihilominus, & indubitatum
esse debet, Romanum
Pontificem supremam illam
totius Ecclesiæ regendæ
auctoritatem non ab hominibus,
sed à Deo accipere, atque adeo
Romanum Pontificem non ab
hominibus, sed à Deo constitui
totius Ecclesiæ Pastorem &
caput. Ita ex communi
Catholicorum sententia, post
Turrecrematam lib. 2. cap. 38.
44. Caietanum opusc. 1. de
auctor. Papæ cap. 13. & 2. part.
Apol. cap. 22. Turrianum lib. 1.
cont. Centur. cap. 18. recte
docent Gregorius de Valentia q.
1. punct. 7. à §. 26. & alij.
Probatur & declaratur. Nam
siue Romanus Pontifex, quia
talis est, Petro absolute diuino
iure succedat, siue iure
Ecclesiastico, certum est
nihilominus, Romanum
Pontificem, postquam ab
Ecclesia electus est, immediate
à Christo iurisdictionem
accipere. Non enim accipit
illam ab electoribus suis
Cardinalibus; neque à tota
communitate Ecclesiæ, quamuis
cuiusmodi electio requiratur
saltem tanquam conditio sine
qua non, vt suprema illa
potestas Pontifici conferatur:
quia potestas illa Pontificia
maior est, quam sit vel potestas
Cardinalium, vel reliqua totius
Ecclesiæ, secluso Pontifice, vt
magis patebit inferius dub. 8.

Deriuatur ergo potestas illa ex
lege & decreto quodam diuino,
quo Deus certo statuit, personæ
rite electæ auctoritatem illam,
& potestatem vniuersalis
Pastoris & capitis conferre, ac
simul eidem infallibili quodam
ductu assistere in ijs rebus, tam

ASSERTION II. It must nevertheless
be certain and indubitable that the
Roman Pontiff receives that supreme
authority for governing the entire
Church not from men, but from God,
and therefore that the Roman Pontiff
is constituted Pastor and head of the
entire Church not by men, but by
God. Thus, according to the common
opinion of Catholics, after
Torquemada [Juan de Torquemada]
book 2, chapters 38 and 44, Cajetan
[Thomas Cajetan] opusculum 1, *On
the Authority of the Pope*, chapter 13,
and part 2 of the *Apology*, chapter 22,
Torriano [Giovanni Maria Tolosani]
book 1, *Against the Centurionators*,
chapter 18, Gregory of Valencia
[Gregorius de Valentia] rightly
teaches at question 1, point 7, from
section 26, and others. This is proved
and explained as follows: For
whether the Roman Pontiff, because
he is such, succeeds Peter absolutely
by divine right, or by ecclesiastical
right, it is nevertheless certain that
the Roman Pontiff, after he has been
elected by the Church, receives
jurisdiction immediately from Christ.
For he does not receive it from his
electors, the Cardinals; nor from the
whole community of the Church,
although an election of this kind is
required at least as a condition *sine
qua non* in order that the supreme
power be conferred upon the Pontiff:
because that pontifical power is
greater than either the power of the
Cardinals or that of the rest of the
entire Church, the Pontiff being
excluded, as will become more
evident below in doubt 8.

Therefore, that power is derived from
the law and from a certain divine
decree, by which God has firmly
established that He will confer that
authority and power of the universal
Pastor and Head upon a person
rightly elected, and at the same time
will assist the same person with a

<i>Latin</i>	<i>English</i>
fidei, quam morum decernendis, quæ ad communem fidelium salutem, fideique integritatem pertinent: quod quidem decretum diuinum nulla humana auctoritate & potestate suppleri posse, satis per se manifestum est. Hinc ea etiam ratione, Summus Pontifex alijs Prælati Ecclesiæ, eminere existimatur, quod alij omnes, ex veriori, suam iurisdictionem à Pontifice, Pontifex vero eam à Christo immediate accipit, vt post alios tradit Bellarminus lib. 2. de Pontifice cap. 17. & lib. 4. cap. 24. Ex quibus aperte etiam falsitatis redarguitur, quod huius temporis Nouatores dicunt, Romanum Pontificem suam illam potestatem ac primatus excellentiam accepisse ab Imperatoribus; puta vel à Constantino, vel à Carolo Magno, vel à Phoca, vt pluribus ostendit Bellarminus lib. 2. de Pontifice cap. 17. & fusius à me contra Sectarios disputatum in Dioptra fidei libro. 3. cap. 8. Nam si proprie neque per Apostolicam quidem auctoritatem, aut Conciliorum statuta, Romanus Pontifex est totius Ecclesiæ caput & pastor, seu Primas, multo minus auctoritate Imperatoria talis esse potest: cum Imperatorum non sit aliis conferre ecclesiasticam & spiritualem potestatem, cuius ipsi exortes sunt, vt probauimus dub. 1. certe Pontificem suam illam summam potestatem non ab alio habere, quam à quo eam habuit Petrus; neque Petrum aliunde habuisse, quam à Christo, & institutione Christi, satis ex scriptura, Patribus, & totius	certain infallible guidance in those matters pertaining both to faith and to morals which must be determined for the common salvation of the faithful and the integrity of the faith: which divine decree, indeed, is sufficiently manifest of itself that it cannot be supplied by any human authority and power. Hence, for this reason also, the Supreme Pontiff is held to stand above the other Prelates of the Church, because all others, according to the truer opinion, receive their jurisdiction from the Pontiff, whereas the Pontiff receives his immediately from Christ, as Bellarminus [Robert Bellarmine] teaches after others in Book 2, <i>On the Pontiff</i>, chapter 17, and Book 4, chapter 24. From which it is also clearly refuted as false what the Innovators of this age say, namely that the Roman Pontiff received that power of his and the excellence of his primacy from Emperors—whether from Constantine, or from Charlemagne, or from Phocas—as Bellarminus demonstrates at greater length in book 2 of <i>De Pontifice</i>, chapter 17, and as I have disputed more fully against the Sectarians in book 3, chapter 8 of <i>Dioptra fidei</i>. For if properly speaking the Roman Pontiff is head and pastor of the whole Church, or Primate, not even by Apostolic authority or by the statutes of Councils, much less can he be such by Imperial authority: since it does not belong to Emperors to confer upon others an ecclesiastical and spiritual power of which they themselves are devoid, as we have proven in doubt 1. Certainly, that the Pontiff does not hold that supreme power of his from any other source than that from which Peter held it; nor that Peter held it from any other source than from Christ and by the institution of Christ, we have sufficiently proven from Scripture, from the Fathers, and from the

<i>Latin</i>	<i>English</i>
antiquitatis historia probauimus dubio præcedenti.	history of all antiquity in the preceding doubt.
Quod ad secundum quæsitum attinet, vtrum sit de fide, hunc numero Pontificem, quem tota Ecclesia tanquam legitime electum agnoscit & recipit, esse vere Pontificem, & totius Ecclesiæ caput; Certa sunt sequentia. I. Id quod in re dubia fidei, ab hoc numero Pontifice, quem tota Ecclesia vt legitime electum agnoscit & recipit, publica auctoritate rite definitum, toti Ecclesiæ credendum proponitur, ab omnibus tanquam de fide certum esse recipiendum; non minus, quam si Deus speciatim reuelasset, eum esse vere Pontificem. Ita ex communi docent Bannes hic q. 1. a. 10. dub. 2. ad 2. Gregorius de Valentia q. 1. pun. 7. §. 39. & Lessius l. 2. c. 35. dub. 25. n. 146. qui simul etiam recte addit, talem, & si forte reipsa inualide electum, ratione tituli colorati, concurrente communi errore, in suis definitionibus habere infallibilem auctoritatem, Deo illi propter commune bonum Ecclesiæ assistente. Ratio est; quia Ecclesia tota in eiusmodi rebus, quæ ad fidem & religionem pertinent, errare aut falli non potest; cum sit <i>columna & firmamentum veritatis</i> 1. Timoth. 3. & doceatur à Deo <i>omnem veritatem</i>: cum ergo Ecclesia in dubijs fidei quæstionibus teneatur acquiescere definitioni eius, qui ab omnibus iure merito Pontifex habetur, impossibile est, falsum esse id, quod ita ab eodem Pontifice proponitur; Deo scilicet per singularem assistentiam eum infallibiliter dirigente, ne erret; siue interim is re ipsa sit Pontifex, siue non.	As to the second question, whether it is a matter of faith that this particular Pontiff, whom the whole Church acknowledges and receives as legitimately elected, is truly the Pontiff and head of the whole Church: the following points are certain. I. That which, in a matter of doubtful faith, is duly defined by public authority by this particular Pontiff, whom the whole Church acknowledges and receives as legitimately elected, and is proposed to the whole Church for belief, must be received by all as certain in faith; no less than if God had specifically revealed that he is truly the Pontiff. Thus from the common teaching Báñez teaches here q. 1. a. 10. dub. 2. ad 2. Gregorius de Valentia q. 1. pun. 7. §. 39. and Lessius l. 2. c. 35. dub. 25. n. 146, who at the same time also correctly adds that such a one, even if perhaps in actual fact invalidly elected, by reason of colorable title, with common error concurring, has infallible authority in his definitions, God assisting him for the common good of the Church. The reason is: because the whole Church in such matters which pertain to faith and religion cannot err or be deceived; since it is the <i>pillar and foundation of truth</i> 1 Timothy 3, and is taught by God <i>all truth</i>: therefore, since the Church in doubtful questions of faith is bound to acquiesce in the definition of him who by all is rightly and deservedly held to be Pontiff, it is impossible that what is thus proposed by the same Pontiff be false; God, namely, by singular assistance infallibly directing him lest he err; whether meanwhile he is in actual fact the Pontiff or not.

*Latin**English*

II. Non solum vt valde temerarium & scandalosum, sed etiam vt suspectum de hæresi, imo vt errantem contra fidem puniri posse eum, qui negaret, vere Pontificem & caput Ecclesiæ esse eum, quem Ecclesia pro tali, nullo interueniente dissensu, semel proposuit & acceptauit. Ita etiam nemine dissentiente, docet Bannes loc. cit. qui tamen addit; nisi quis forte ostenderet, illum non esse baptizatum, aut non esse virum; sed quæ hypothesis in acceptato Pontifice non est possibilis, vt dicetur. Ratio est; tum quia talis præsumi posset vniuersim negare summi Pontificis auctoritatem: tum quia talis propositio suâ naturâ ad concitandum schisma, grauemque ac periculosam Ecclesiæ perturbationem tendit.

III. Imo etiam vno quodam sensu, de fide esse, hunc numero Pontificem esse vere Pontificem, & caput Ecclesiæ; nimirum, tum quia in abstracto de fide est, Pontificem Romanum rite promotum esse caput Ecclesiæ: tum quia de fide est, etiam hunc numero Pontificem esse caput Ecclesiæ, saltem sub conditione, si reipsa sit legitime electus & promotus; vbi simul etiam supponuntur personæ habilitas, & cæteræ conditiones ad valorem talis electionis requisitæ. Colligitur ex dictis, in simili, ad præcedentem dubitationis partem.

An vero id absolute sit de fide; duæ sunt Doctorum sententiæ. Prima absolute negat, id esse de fide. Ita Bannes hic a. 10. dub. 4. vbi ait: *Etiam post summi Pontificis, & Concilij definitionem, solum haberi ex humana prudentia, & euidenti*

II. Not only can he who would deny that he whom the Church has once proposed and accepted as such, with no intervening dissent, is truly the Pontiff and head of the Church be punished as very rash and scandalous, but also as suspect of heresy, indeed as erring against the faith. So also, with no one dissenting, teaches Báñez in the place cited, who nevertheless adds: unless perhaps someone were to show that he was not baptized, or was not a man; but this hypothesis is not possible in the case of an accepted Pontiff, as will be said. The reason is: both because such a person could be presumed to deny universally the authority of the Supreme Pontiff, and because such a proposition by its nature tends toward inciting schism and grave and dangerous disturbance of the Church.

III. Indeed, also in a certain sense, it is of the faith that this individual Pontiff is truly the Pontiff and head of the Church; namely, both because in the abstract it is of the faith that the Roman Pontiff rightly promoted is the head of the Church, and because it is of the faith that even this individual Pontiff is the head of the Church, at least under the condition that he is in fact legitimately elected and promoted; where at the same time are also presupposed the suitability of the person and the other conditions required for the validity of such an election. This is gathered from what was said, in a similar matter, regarding the preceding part of the doubt.

Whether this is absolutely a matter of faith, there are two opinions among the Doctors. The first absolutely denies that it is a matter of faith. Thus Báñez here, article 10, doubt 4, where he states: *Even after the definition of the Supreme Pontiff and of a Council, it is held only from*

<i>Latin</i>	<i>English</i>
<i>inquisitione, aut etiam ex infusa prudentia, cui potest subesse falsum speculatiue, quod hic est Summus Pontifex, & quod hoc est Concilium rite confirmatum & congregatum. Idem docet Castro de hæresibus lib. 1. cap. 9. vbi ait: Quamuis credere teneamur, verum Petri Successorem esse supremum totius Ecclesiæ Pastorem; non tamen tenemur eadem fide credere, Leonem, aut Clementem esse verum Petri Successorem; quoniam non tenemur ex fide Catholica credere, eorum quemlibet recte & canonice fuisse electum. Et ante hos Turrecremata lib. 4. Summæ cap. 9. ait, non esse de fide, sed sapere fidem, quod hoc est verum Concilium, quod hic est Papa.</i> Idem necessario sentiunt omnes, qui negant, conclusionem Theologicam, mediate solum reuelatam, seu ex reuelatis deductam, esse de fide. Fundamentum est: quia non potest infallibiliter constare, electionem vndeque fuisse validam; quando & ob incapacitatem personæ si forte mulier, aut non vere baptizata fuerit; & ob simoniam interuenientem, electio potuit esse nulla. Quamuis enim valde probabile sit, à duabus partibus Cardinalium concorditer factam electionem, non obstante simoniâ, esse validam, vt quidam sentiunt, iuxta cap. <i>Licet</i>, de electione: oppositum tamen alijs videtur verius, iuxta cap. <i>Si quis pecunia</i> distinct. 79. & decretum Concilij Lateranensis sub Iulio II. sess. 5. Quod etiam magis probare videtur Lessius lib. 2. cap. 35. dub. 25. n. 145.	<i>human prudence and evident investigation, or even from infused prudence—under which there can be speculative falsehood—that this man is the Supreme Pontiff, and that this is a Council rightly confirmed and assembled. Alfonso de Castro teaches the same in De hæresibus book 1, chapter 9, where he says: Although we are bound to believe that the true Successor of Peter is the supreme Pastor of the whole Church, nevertheless we are not bound by the same faith to believe that Leo or Clement is the true Successor of Peter; since we are not bound by Catholic faith to believe that any one of them was rightly and canonically elected. And before these, Juan de Torquemada in book 4 of the Summa, chapter 9, says that it is not a matter of faith, but savors of faith, that this is a true Council, that this man is Pope.</i> All those who deny that a theological conclusion only mediately revealed, or deduced from revealed truths, is a matter of faith necessarily hold the same view. The foundation is this: because it cannot infallibly be established that an election was valid in every respect; since the election could be null both on account of incapacity of the person—if perchance it were a woman, or one not truly baptized—and on account of intervening simony. For although it is highly probable that an election made by concordant agreement of two parts of the Cardinals is valid, notwithstanding simony, as some hold according to the chapter <i>Licet</i>, concerning election: nevertheless the opposite seems truer to others, according to the chapter <i>Si quis pecunia</i>, distinction 79, and the decree of the Lateran Council under Julius II, session 5. This also Lessius [Leonardus Lessius] seems to prove more fully in book 2, chapter 35, doubt 25, number 145.

<i>Latin</i>	<i>English</i>
Secunda sententia asserit, esse de fide. Ita Gregorius de Valentia q. 1. pun. 7. §. 39. qui tamen limitat, si modo talis Pontifex aliquid circa fidem definierit. Eandem sententiam tradunt Salmeron tom. 13. part. 3. in epist. ad Rom. pag. 185. & Michael Vasquez in disputatione quadam 10. Iulij Anno 1602. Vallisoleti proposita, & Pontifici dedicata, vbi dicit, eam sententiam in Salmanticensi, Complutensi, Ingolstadiensi, Romana, cæterisque Academijs, à nostra Societate fuisse defensam. Quæ mihi etiam sententia semper verior est visa. Ratio est. Quia conclusio Theologica ex vna propositione de fide, & altera saltem moraliter euidenti deducta, est de fide, ex dictis q. 1. dub. 3. sed hæc conclusio est talis: Ergo. &c. Minor probari primum potest hoc syllogismo: <i>Omnis canonice promotus ad cathedram Apostolicam Petri, est verus ac generalis Ecclesiæ Pastor: hic est canonice promotus & electus: Ergo. Vbi</i> Maior videtur de fide; minor autem euidens saltem moraliter, ex testificatione nimirum humana quidem; sed adeo certa & explorata, vt merito credatur, ei subesse falsum non posse; quandoquidem supponitur, de legitima electione irrefragabili Ecclesiæ vniuersalis testimonio constare. Vnde etiam consequenter efficietur, pariter ex fide certum esse, hunc numero Pontificem habere omnes conditiones requisitas ad valorem talis electionis; adeoque esse non fœminam, sed virum, ac vere baptizatum; idque siue aliquid circa fidem definierit, siue non; modo	The second opinion asserts that it is a matter of faith. Thus Gregorius de Valentia [Gregory of Valencia], question 1, point 7, § 39, who nevertheless limits this, provided that such a Pontiff has defined something concerning the faith. The same opinion is taught by Salmeron [Alphonsus Salmeron], tome 13, part 3, on the Epistle to the Romans, page 185, and Michael Vasquez [Miguel Vázquez] in a certain disputation proposed at Valladolid on July 10, in the year 1602, and dedicated to the Pontiff, where he says that this opinion was defended by our Society in the Salamancan, Complutensian, Ingolstadtian, Roman, and other Academies. This opinion has always seemed to me the more true. The reason is as follows: A theological conclusion deduced from one proposition of faith and another that is at least morally evident is a matter of faith, according to what was said in question 1, doubt 3. But this conclusion is of such a kind: Therefore, etc. The minor premise can be proved first by this syllogism: <i>Every one canonically promoted to the Apostolic See of Peter is the true and universal Pastor of the Church; this man has been canonically promoted and elected: Therefore.</i> Here the major premise appears to be a matter of faith; the minor premise, however, is at least morally evident from human testimony indeed, but testimony so certain and established that one rightly believes that there can be no falsehood underlying it, inasmuch as it is presupposed that the legitimate election is established by the irrefragable testimony of the universal Church. Whence it will also follow as a consequence that it is likewise certain from faith that this particular Pontiff possesses all the conditions required for the validity of such an election, and therefore that he is not a woman but a man, and

<i>Latin</i>	<i>English</i>
constet, esse legitime electum & promotum. Nam etiamsi absolute & Metaphysice loquendo, fieri posset, vt mulier, aut etiam homo non baptizatus in Pontificem eligeretur, id tamen iuxta consuetum agendi modum, adeo est incredibile, vt moraliter censeatur impossibile.	truly baptized; and this whether he has defined anything concerning the faith or not, provided it is established that he has been legitimately elected and promoted. For even if, speaking absolutely and metaphysically, it could happen that a woman, or even a man not baptized, might be elected Pontiff, yet according to the customary manner of proceeding, this is so incredible that it is morally judged to be impossible.
Sed reuera hæc argumentatio à sola electione petita, non videtur sufficiens; quia vel per canonicam promotionem & electionem solum intelligitur illa, quæ externa specie, & in foro externo legitima censetur, aut quæ simul etiam includit & supponit omnes conditiones, quantumuis occultas, ad valorem talis electionis requisitas, vt v.g. personam electam esse virum, non mulierem; esse baptizatum, &c. Si primum dicitur, maior illa propositio non est de fide; quia non obstante tali legitima electione & promotione, fieri posset, vt eius effectus occulto impedimento impediatur. Si secundum dicatur, tunc minor nec moraliter quidem est euidens. Esto enim nonnunquam moraliter euidens esse possit, hunc esse virum, non fœminam; id tamen nec moraliter quidem euidens esse potest, hunc esse vere baptizatum; non magis certe, quam alium hominem inter Catholicos educatum.	But in truth this argumentation, drawn from election alone, does not seem sufficient; because by canonical promotion and election is understood either that which is deemed legitimate by external appearance and in the external forum, or that which simultaneously also includes and presupposes all conditions, however hidden, required for the validity of such an election, as for example that the person elected is a man, not a woman; is baptized, etc. If the first is meant, that major proposition is not <i>de fide</i> ; because notwithstanding such a legitimate election and promotion, it could happen that its effect is impeded by a hidden impediment. If the second is meant, then the minor is not even morally evident. For even granted that it can sometimes be morally evident that this person is a man, not a woman; nevertheless it cannot be even morally evident that this person is truly baptized; certainly no more so than for any other man raised among Catholics.
Firmior est igitur altera ratio, quæ ab acceptatione Ecclesiæ petitur. Nam impossibile est vniuersam Ecclesiam falli, in rebus ad communem totius Ecclesiæ Religionem spectantibus; cum sit firmamentum veritatis: atqui iudicium, quo Ecclesia	Therefore the other argument, which is drawn from the acceptance of the Church, is more solid. For it is impossible for the universal Church to err in matters pertaining to the common Religion of the whole Church, since she is the pillar of truth: but the judgment by which the Church accepts someone and holds

<i>Latin</i>	<i>English</i>
quempiam acceptat, & habet pro Pontifice est res ad totius Ecclesiæ Religionem pertinens: Ergo impossibile est, Ecclesiam in eo iudicio falli; ac proinde de fide est, eum quem vniuersa Ecclesia velut Pontificem acceptauit, esse vere Pontificem & caput Ecclesiæ. Vbi & maior, & minor propositio est de fide; sequitur ergo etiam conclusio de fide. Nec obstat, quod fide diuina non creditur, hanc numero hostiam esse vere consecratam, non solum, quia vt fatetur etiam Bannes, multo incertius est, hanc hostiam esse consecratam, quam hunc numero esse verum Pontificem; sed etiam, quia cum ad propositionem fidei requiratur, vel vt secundum se immediate sit reuelata, vel vt euidenter deducatur ex duobus reuelatis, aut ex vna saltem reuelata, & altera euidenti, idcirco merito quidem censetur de fide esse, quod hic numero Pontifex sit verus Pontifex, vt dictum; non autem, quod hæc numero hostia sit consecrata, vt quæ propositio nec immediate secundum se est reuelata, nec ex vna saltem reuelata, & altera euidenti deducitur, siquidem minor propositio, quæ post maiorem de fide subsumitur, semper manifeste est ineuidens & incerta, vt discurrenti patebit. Idem autem, quod de hoc numero Pontifice dictum, etiam locum habet de hoc numero Concilio v. g. Nicæno, seruata proportionem. Fuisse enim habitum aliquod Concilium Nicænum, idque etiam legitime conuocatum & celebratum, ac Romani Pontificis auctoritate comprobatum scimus euidentia quadam morali, ex consensu totius historiæ: id ipsum autem	him as Pontiff is a matter pertaining to the Religion of the whole Church: Therefore it is impossible for the Church to err in that judgment; and consequently it is <i>de fide</i> that he whom the universal Church has accepted as Pontiff is truly Pontiff and head of the Church. Where both the major and the minor proposition is <i>de fide</i>, it follows therefore that the conclusion is also <i>de fide</i>. Nor does it stand as an objection that it is not believed by divine faith that this particular host is truly consecrated, not only because, as even Báñez admits, it is far more uncertain that this host is consecrated than that this particular person is the true Pontiff; but also because, since for a proposition of faith it is required either that it be immediately revealed in itself, or that it be evidently deduced from two revealed truths, or from at least one revealed truth and another evident truth, therefore it is rightly judged to be a matter of faith that this particular Pontiff is the true Pontiff, as has been said; but not that this particular host is consecrated, inasmuch as this proposition is neither immediately revealed in itself, nor is it deduced from at least one revealed truth and another evident truth, since the minor proposition, which is subsumed after the major proposition concerning faith, is always manifestly non-evident and uncertain, as will be clear to one who reasons through it. The same, however, which has been said concerning this particular Pope, also has application to this particular Council, for example the Nicene [Council], preserving due proportion. For we know with a certain moral certitude, from the consensus of all history, that some Council of Nicaea was held, and that it was also legitimately convoked and celebrated, and confirmed by the authority of the Roman Pontiff: but

<i>Latin</i>	<i>English</i>
fuisse infallibile, per fidem credimus, simili quodam discursu supposito. Fatemur tamen, etiam oppositam sententiam esse probabilem; nec in fide vllo modo periculosam, vtpote quæ veræ fidei & bonis moribus nihil præiudicat, vt ex dictis colligitur: præsertim, quando multi negant, vllam propositionem immediate non reuelatam esse de fide, vt suo loco dictum. Quod ad tertium quæsitum attinet, an, & qua ratione Pontifex hanc suam potestatem amittere possit, breuiter dico sequentia. I. Pontifex propria voluntate eam dignitatem renuntiare, ac deponere potest; idque etiam sine Ecclesiæ & Cardinalium consensu. Habetur ex cap. 1. de renuntiat. in 6. & Glossa ibidem: idq; reipsa nonnunquam contigisse, constat ex historijs. II. Si Pontifex in perpetuam amentiam incidat, tunc ipso iure diuino ea potestate excidit. Videtur communis: quia fundamentum iurisdictionis est vsus rationis; ita vt perpetua amentia, quoad capacitatem iurisdictionis & dignitatis, æquiualeat morti. III. Extra casum hæresis seu apostasiæ, nec ob vlla, quamuis notoria crimina, nec ob alia incommoda, vel calamitates, priuari Pontifex sua potestate vnquam potest. Ita Antoninus 3. par. tit. 22. c. 4. §. 3. Turrecremata l. 2. de Ecclesia cap. 98. & sequentibus, & lib. 4. part. 1. c. 9. Pighius lib. 6. hier. eccles. cap. 19. Caietanus opusculo de auctoritate Papæ part. 1. c. 27. Turrianus lib. de Papa & Concilijs, Corduba lib. 4. q. 6. etsi contrarium sentiat Glossa cap. <i>Si Papa</i>. dist. 40.	that it was itself infallible, we believe by faith, on the basis of a similar kind of reasoning presupposed. We admit, however, that the opposing opinion is also probable; nor is it in any way dangerous to the faith, inasmuch as it prejudices neither the true faith nor good morals, as may be gathered from what has been said: especially since many deny that any proposition not immediately revealed is a matter of faith, as has been said in its proper place. As to the third question, whether, and by what reasoning, a Pontiff can lose this power of his, I state briefly the following. I. A Pontiff can, by his own will, renounce and lay down that dignity; and this even without the consent of the Church and the Cardinals. This is contained in cap. 1. de renuntiat. in 6. [sexto] and the Gloss there: and that this has in fact sometimes occurred, is established by the histories. II. If a Pontiff should fall into perpetual insanity, then by divine law itself he loses that power. This seems to be the common opinion: because the foundation of jurisdiction is the use of reason; so that perpetual insanity, as regards the capacity for jurisdiction and dignity, is equivalent to death. III. Outside the case of heresy or apostasy, nor on account of any crimes, however notorious, nor on account of other disadvantages or calamities, can the Pontiff ever be deprived of his power. Thus Antoninus [of Florence], 3rd part, title 22, chapter 4, §3; Juan de Torquemada, book 2 of <i>De Ecclesia</i>, chapter 98 and following, and book 4, part 1, chapter 9; Albert Pighius, book 6 of <i>Hierarchiæ Ecclesiasticæ</i>, chapter 19; Cajetan [Thomas de Vio], in his work <i>De Auctoritate Papæ</i>, part 1, chapter 27; Francisco de Torres, in his book <i>De Papa et</i>

<i>Latin</i>	<i>English</i>
itemque Panormitanus in Capit. <i>significasti</i>. de electione; qui docent, Papam deponi posse ob notoria crimina, quæ graue scandalum Ecclesiæ pariant, si quidem incorrigibilis permaneat; quos refutat etiam Bellarminus lib. 2. de Romano Pontifice à cap. 27. Probatur ex iure Canonico, cap. <i>Si Papa</i>, dist. 40. & cap. <i>Electionem</i>, dist. 79. & capit. <i>Oues</i>, 2. q. 7. & cap. <i>Nemo</i>, cap. <i>Aliorum</i>, cap. <i>Cuncta</i>. 9. q. 3. aliisque pluribus, apud Turrecrematam lib. 2. cap. 102. Ratio est. Tum quia extra casum hæresis & apostasiæ, pontifex est membrum Ecclesiæ, quid ni etiam esse & permanere possit caput Ecclesiæ? quando alioquin superiorem nullum habet, à quo iudicetur, vt dicetur. Tum quia alias facile aperiretur ianua calumnijs, pluribusque schismatum occasionibus. IV. Sed nec in casu hæresis, ab Ecclesia, seu Concilio generali, per se ac directe sua potestate exui ac priuari potest. Est itidem communior sententia speciatim eorum, quos pro sequenti pronuntiato adducemus; quamquam nec cæteris Theologis hoc aduersari videatur, qui communiter docent, supposita cognitione & sententia Ecclesiæ, de notoria Pontificis hæresi, eum ab ipso D E O sua potestate priuari. Ratio est; tum quia Pontifex suam potestatem habet &	<i>Conciliis</i>; [Antonio de] Córdoba, book 4, question 6—although the Glossa on the chapter <i>Si Papa</i>, distinction 40, holds the contrary view, as does Panormitanus [Nicolaus de Tudeschis] in the chapter <i>Significasti</i>, <i>De electione</i>; these teach that the Pope can be deposed on account of notorious crimes which give rise to grave scandal in the Church, if indeed he remains incorrigible. These [latter opinions] are also refuted by Bellarmine in book 2 of <i>De Romano Pontifice</i>, from chapter 27 [onward]. This is proven from Canon Law, in the chapter <i>Si Papa</i>, distinction 40; and the chapter <i>Electionem</i>, distinction 79; and the chapter <i>Oues</i>, question 2, chapter 7; and the chapter <i>Nemo</i>, the chapter <i>Aliorum</i>, the chapter <i>Cuncta</i>, question 9, chapter 3; and in many other places, as found in Torquemada [Juan de Torquemada], book 2, chapter 102. The reason is this: First, because outside the case of heresy and apostasy, the pontiff is a member of the Church—why then could he not also be and remain the head of the Church? since otherwise he has no superior by whom he might be judged, as will be stated. Second, because otherwise the door would easily be opened to calumnies and to numerous occasions for schisms. IV. But not even in the case of heresy can he be stripped and deprived of his power by the Church, or by a general Council, through its own authority acting directly and per se. This is likewise the more common opinion, especially of those whom we shall adduce in support of the following pronouncement; although neither does this seem to be contrary to other Theologians, who commonly teach that, supposing the cognizance and sentence of the Church concerning the notorious heresy of the Pontiff, he is deprived of his power by GOD Himself. The reason

<i>Latin</i>	<i>English</i>
accipit non ab Ecclesia, sed immediate ab ipso D E O, supposita tamen legitima electione, velut conditione requisita, vt dictum & omnes communiter fatentur. Tum quia Pontifex nullum habet superiorem in terris, à quo directe iudicetur; quando ipse est caput supra vniuersam Ecclesiam, adeoque etiam supra ipsum Concilium generale, vt dicetur dub. 8.	is this: First, because the Pontiff has and receives his power not from the Church, but immediately from GOD Himself, presupposing however a legitimate election as a required condition, as has been stated and as all commonly acknowledge. Second, because the Pontiff has no superior on earth by whom he might be directly judged; since he himself is the head over the universal Church, and consequently also over the general Council itself, as will be stated in doubt 8.
V. In casu tamen notoriæ, & palam diulgatæ in Ecclesia hæresis, quæ nulla tergiuersatione celari possit, probabilius videtur, Pontificem ipso facto, ipsoque iure diuino, etiam ante sententiam & cognitionem Ecclesiæ declaratoriam criminis, excidere sua potestate. Ita habet communior sententia antiquiorum Theologorum, speciatim Turrecrematæ lib. 2. cap. 102. & lib. 4. part. 2. à cap. 18. Paludani Opuscul. de potestate Papæ, Driedonis de libert. Christi. cap. 14. Castro lib. 2. de iusta hæret. punitione cap. 22. & 23. Salmeronis tom. 12. tractat. 83. & ex Canonistis, Augustini de Ancona de potestate Papæ q. 5. Simanchæ Institut. Catholic. cap. 21. Iacobatij lib. 7. de Concilijs a. 1. quos sequitur Gregorius de Valentia hic quæst. 1. punct. 7. §. 41. Etsi contrarium sentiant Caietanus de auctoritate Papæ cap. 18. & 19. Sotus in 4. dist. 22. quæstion. 2. art. 2. Canus lib. 4. locorum cap. vltim. ad 12. Corduba lib. 4. quæst. 11. & alij recentiores, qui docent, Pontificem nec in casu hæresis quidem excidere sua potestate, ante sententiam Ecclesiæ declaratoriam criminis.	V. In the case, however, of a notorious heresy openly divulged in the Church, which can be concealed by no evasion, it seems more probable that the Pontiff falls from his power by that very fact (<i>ipso facto</i>) and by divine law itself (<i>ipsoque iure divino</i>), even before the declaratory sentence and cognizance of the Church regarding the crime. This is the view held by the more common opinion of the older Theologians, especially Juan de Torquemada (<i>Turrecremata</i>) book 2, chapter 102, and book 4, part 2, from chapter 18; Peter de Palude (<i>Paludanus</i>) in his <i>Opusculum de potestate Papæ</i> ; Johannes Driedo (<i>Driedo</i>) <i>De libertate Christiana</i> chapter 14; Alfonso de Castro book 2, <i>De iusta hæreticorum punitione</i> chapters 22 and 23; Alfonso Salmerón (<i>Salmeron</i>) tome 12, treatise 83; and among the Canonists, Augustine of Ancona (<i>Augustinus de Ancona</i>) <i>De potestate Papæ</i> question 5; Diego de Simancas (<i>Simancha</i>) <i>Institutiones Catholice</i> chapter 21; Giacomo Giacobazzi (<i>Iacobatius</i>) book 7, <i>De Conciliis</i> annotation 1; whom Gregory of Valencia (<i>Gregorius de Valentia</i>) follows here in question 1, point 7, § 41. Although the contrary opinion is held by Thomas de Vio Cajetan (<i>Caietanus</i>) <i>De auctoritate Papæ</i> chapters 18 and 19; Domingo de Soto (<i>Sotus</i>) in book 4, distinction 22, question 2, article 2;

<i>Latin</i>	<i>English</i>
Nituntur, inter alia, etiam dicto Clementis epist. 1. quasi dixerit, <i>hæreticum Papam esse deponendum</i>. Sed ego plus in ea epistola non inuenio, quam hoc: <i>Ipsi autem Episcopi, si exorbitauerint, ab illis (subditis) non sunt reprehendendi, vel arguendi; sed supportandi, nisi in fide errauerint</i>. Quod generatim de Episcopis pronunciatum, suo etiam modo, & iuxta sensum nostræ assertionis, facile, etiam Summo Pontifici applicari potest. Ratio esse debet: quia in casu hæresis notoriæ, necesse est, tum ob præceptum Christi & Apostolorum, præcipientium, hæreticos esse vitandos, vt dicetur q. 8. dub. 6. tum ob publicum Ecclesiæ totius periculum vitandum, Pontificem sua potestate priuari, vt omnes fatentur: id vero fieri nullo modo potest, per sententiam Ecclesiæ, quamuis solum declaratoriam criminis: ergo cēsendum est, cum tunc ipso facto & iure diuino sua potestate priuari; eo modo, quo etiam in simili casu amentię, censetur iure diuino hac potestate excidere, vt dictum. Minor probatur; quia sententia etiam declaratoria criminis requirit iurisdictionem, & potestatem citandi & examinandi reum: Ecclesia vero, aut Concilium in Summum Pontificem quamdiu	Melchor Cano (<i>Canus</i>) book 4 of the <i>Loci theologici</i>, final chapter at argument 12; Antonio de Córdoba (<i>Corduba</i>) book 4, question 11; and other more recent authors, who teach that the Pontiff does not fall from his power even in the case of heresy, before the declaratory sentence of the Church regarding the crime. They rely, among other things, also on the saying of Clement in epistle 1, as if he had said that <i>a heretical Pope ought to be deposed</i>. But I find nothing more in that epistle than this: <i>But those Bishops themselves, if they should go astray, are not to be reproved or corrected by those (subjects); but they are to be borne with, unless they should err in the faith</i>. This pronouncement, made generally concerning Bishops, can easily be applied also to the Supreme Pontiff, in its own manner and according to the sense of our assertion. The reason ought to be: because in the case of notorious heresy, it is necessary—both on account of the precept of Christ and the Apostles, commanding that heretics are to be avoided, as will be said in question 8, doubt 6, and on account of avoiding the public danger to the whole Church—that the Pontiff be deprived of his power, as all acknowledge. But this can in no way be done through a sentence of the Church, even one merely declaratory of the crime. Therefore it must be judged that he is then deprived of his power by that very fact and by divine law, in the same manner in which, even in a similar case of insanity, he is judged to lose this power by divine law, as has been said. The minor premise is proved thus: because even a declaratory sentence of a crime requires jurisdiction and the power to cite and examine the accused. But the Church, or a Council, has no jurisdiction over the Supreme Pontiff so long as he

<i>Latin</i>	<i>English</i>
is potestatem hanc habet, nullam habet iurisdictionem, vt dictum. Neque ideo necesse est, vlla sequi incommoda; quando in casu eiusmodi notoriæ hæresis, vt dictum, à nullo probabiliter talis Pontificis causa defendi potest, neque vero in opposita etiam sententia satis constat, per quos, & qua ratione ea sententia pronuntiari possit & debeat; & multi sæpe anni labuntur, dum de generalis Concilij conuocatione tractatur; esto, si tempestiue respiscat, ex tacito Ecclesiæ consensu, ea dignitas redeat. VI. Sed & dubius Pontifex, quando Ecclesiæ certo constare non potest, an vere & legitime fuerit electus, suum ius resignare debet; alias eo abdicato, iure alius eligitur. In hoc consentiunt omnes. Ratio: quia dubius Pontifex reuera in facie Ecclesiæ non est verus Pontifex; vtpote cui Ecclesia obedire non tenetur; quæ proinde iure ad nouam electionem procedit. Plura infra de Schismate.	possesses this power, as has been stated. Nor is it therefore necessary that any inconveniences follow; since in such a case of notorious heresy, as has been said, the cause of such a Pontiff cannot probably be defended by anyone; nor indeed, even in the opposite opinion, is it sufficiently established by whom, and by what procedure, that sentence can and ought to be pronounced; and many years often pass while the convocation of a general Council is being discussed; granted that, if he should repent in timely fashion, by the tacit consent of the Church, that dignity may return to him. VI. But even a doubtful Pontiff, when it cannot be certainly established by the Church whether he was truly and legitimately elected, ought to resign his right; otherwise, once he has been removed, another is rightfully elected. All agree on this. The reason: because a doubtful Pontiff is in reality not a true Pontiff in the face of the Church; inasmuch as the Church is not bound to obey him; which therefore rightfully proceeds to a new election. More on this below concerning Schism.